

26STLC01897 26STLC01897

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-16

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Case Number: 26STLC01897 Hearing Date: September 16, 2026 Dept: 25

HEARING DATE: Wed., September 16, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Cohen,
et al. v. Suneast Condominiums Homeowners Association, Inc.

COMP. FILED: 03-19-26

CASE NUMBER: 26STLC01897

NOTICE: OK

PROCEEDINGS: MOTION
TO STRIKE ANSWER

MOVING PARTY: Plaintiff
Lionel Cohen and Sanora Cohen

RESP. PARTY: Defendant Suneast Condominiums
Homeowners Association (erroneously sued as Suneast Condominiums Homeowners
Association, Inc.)

MOTION TO STRIKE

(Code Civ. Proc., §§ 435,
436)

TENTATIVE RULING:

The Court DENIES

Lionel Cohen and Sanora Cohen's motion to strike.

Suneast Condominiums

Homeowners Association is to give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on September 2, 2026 [

]

Late ☐ None

REPLY: Filed

on September 8, 2026 ☐ Late ☐ None

ANALYSIS:

Lionel

Cohen and Sanora Cohen sued Suneast Condominiums Homeowners Association for breach of duty under the Davis-Stirling Act and for enforcement of equitable servitudes under the declaration of covenants, conditions, and restrictions. The complaint alleges that Suneast's corporate status was terminated by the Franchise Tax Board on March 28, 2019. Suneast filed an answer on June 30, 2026 as "Suneast Condominiums Homeowners Association, a California non-profit mutual benefit corporation (erroneously sued as Suneast Condominiums Homeowners Association, Inc.)." The Cohens move to strike Suneast's answer arguing that the named defendant Suneast "Inc." is a suspended/terminated corporation disqualified from defending itself, and the answer was thus improperly filed by a new entity formed on June 27, 2026 after the complaint was filed.

Motions to strike in limited jurisdiction courts may only challenge pleadings “on the ground that the damages or relief sought are not supported by the allegations of the complaint.”

(Code Civ. Proc. § 92, subd. (d).)

The Cohens’ request falls outside the bounds of permitted motions to strike in limited civil cases, so the Court DENIES it.

Even considering the motion on the merits, it fails. The Cohens request judicial notice of two California Secretary of State business records: one for Suneast Inc. (No. 1168775) showing status as “Terminated – FTB Admin” with an inactive date of March 28, 2019, and one for Suneast Condominiums Homeowners Association (No. B20260299538) showing an initial filing date of June 27, 2026. Contrary to Suneast’s arguments, these documents are proper subjects of judicial notice as official acts of the executive department. (Evid. Code, § 452, subd. (c); *Friends of Shingle Springs Interchange, Inc. v. County of El Dorado* (2011) 200 Cal.App.4th 1470, 1484.) The Court GRANTS the request for judicial notice as to the existence and content of the records.

The Cohens’ authorities address suspended corporations under Revenue and Taxation Code section 23301. It is true that a suspended corporation is “disqualified from exercising any right, power or privilege” and “may not prosecute or defend an action in a California court.” (*Timberline, Inc. v. Jaisinghani* (1997) 54 Cal.App.4th 1361, 1365.) But the Secretary of State filing shows Suneast Inc.’s status as “Terminated – FTB Admin” reflecting an administrative dissolution. The Cohens improperly apply suspension authorities to a terminated entity. Suneast is a nonprofit mutual benefit corporation and thus “continues to exist for the purpose of winding up its affairs, prosecuting and defending actions by or against it” under the survival statute of Corporations Code section 8722. (See Corp. Code, § 8723 [enforcing causes of action against a dissolved corporation “whether arising before or after the dissolution”].) Thus, Suneast is the original association which continues to exist under Corporations Code section 8722, regardless of the June 2026 filing and the “erroneously sued” label.

Furthermore, the Davis-Stirling Act permits Suneast to act regardless of incorporation. A common interest development “shall be managed by an association that may be

incorporated or unincorporated” and the association “may exercise the powers granted to an association” under the Act.

(Civ. Code, §§ 4800, 4805.) The

judicially noticed records demonstrate Suneast continued to exist and re-incorporated under the same name in June 2026. Regardless, its capacity to defend this action does not turn on its corporate status.

The Court therefore has no reason to strike Suneast's answer at this time.

Suneast is to give notice.